

TENTATIVE RULING FOR CIVSB2520626
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Martinez v. Cardenas Market, LLC, et al

Motion: Compel Further Responses to Produce of Documents (Set One)
Compel Further Responses to Special Interrogatories (Set One)

Movant: Rosa Linda Martinez (Martinez/Plaintiff)

Respondent: Cardenas Market, LLC (Cardenas/Defendant)

RULING

1. Motion to Compel Further Responses to Production of Documents Set One is GRANTED IN PART AND DENIED IN PART.
 - a. No. 5: GRANTED.
 - b. No. 21: GRANTED.
 - c. No. 22: GRANTED.
 - d. No. 24: DENIED.
 - e. No. 25: GRANTED.
 - f. No. 27: GRANTED.
 - g. No. 42: GRANTED.
 - h. No. 43: GRANTED.
2. Motion to Compel Further Responses to Production of Documents Set One is GRANTED IN PART AND DENIED IN PART.
 - a. No. 1: GRANTED.
 - b. No. 2: DENIED.
 - c. No. 3: GRANTED.
 - d. No. 5: GRANTED.
 - e. No. 11: GRANTED.
 - f. No. 13: GRANTED.
3. Defendant is ordered to provide code compliant responses within 30 days. Defendant to provide a fully executed verification within 30 days.

4. Plaintiff's request for sanctions is GRANTED. Defendant and Derossi & Associates are ordered to pay \$1500 in monetary sanctions within 30 days.
5. Movant to give Notice.

TENTATIVE RULING FOR CIVSB2433105
Department S24 - Judge Carlos M. Cabrera

This courtroom follows California Rules of Court, rule 3.1308(a)(2) for tentative rulings. See also San Bernardino Superior Court Local 561. **If both sides do not appear, the tentative will simply become the ruling.**

Jauregui v. Delayo, et al

Motion: Enforcement Settlement Agreement under CCP 664.6

Movant: Ana Karina Jauregui (Jauregui/Plaintiff)

Respondent: Toolots, Inc. (Toolots), Andrew Delayo (Delayo), collectively (Defendants)

RELEVANT FACTUAL AND PROCEDURAL BACKGROUND

On November 1, 2024, Plaintiff Ana Karina Jauregui filed a complaint against Defendants Toolots, Inc., and Andrew Delayo alleging 10 causes of action: (1) discrimination (against Toolots); (2) harassment (against Defendants); (3) retaliation under FEHA (against Toolots); (4) retaliation under the Labor Code (against Toolots); (5) failure to prevent discrimination, harassment and retaliation (Against Toolots); (6) assault (against Defendants); (7) battery (against Defendants); (8) violation of the Ralph Civil Rights Act (against Defendants); (9) violation of the Tom Bane Civil Rights Act (against Defendants); and (10) Wrongful Termination (against Toolots).

On January 8, 2026, the parties attended a voluntary mediation session, but no settlement was reached. On February 21, 2026, the mediator proposed a \$650,000 settlement of all claims. On February 24, 2026, the mediators e-mailed the parties' attorneys that both parties accepted the proposal. (Marquez Decl. ¶¶ 3, 5-6; Exh. A.) On March 5, 2026, Defendants' counsel circulated a draft settlement form. Plaintiff's counsel forwarded edits to Defendants' counsel for review. Plaintiff's counsel followed up on March 20, requesting an update. Defendants' counsel responded on March 24 with "Good afternoon, sorry for the delay, yes, we are good to go for circulation and signatures." (Marquez Decl. ¶¶ 7-8; Exh. A.) On March 25, 2026, Plaintiff's counsel provided Defendants' counsel an executed copy of the settlement agreement. (Marquez Decl. ¶ 9; Exh. B.) Defendants did not sign the settlement agreement. (Marquez Decl. Exh. B; Crane Decl. ¶¶ 7-8.) Now before the Court is Plaintiff's motion to enforce the parties' settlement agreement under California Code of Civil Procedure section 664.6, subdivision (a). Defendants oppose.

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ANALYSIS

California Code of Civil Procedure Section 664.6 states in pertinent part:

If parties to pending litigation stipulate, **in a writing signed by the parties outside of the presence of the court or orally before the court**, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel **stipulate in writing or orally before the court**, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:

The party.

An attorney who represents the party.

(CCP §664.6(a)(b)(1)(2), emphasis added)

The undisputed facts are that neither Defendants nor Defendant's counsel ever signed the alleged settlement agreement. Code of Civil Procedure Section 664.6 clearly states that the settlement agreement must be in writing and "signed by the parties outside of the presence of the court". (CCP §664.6(a). Plaintiff has failed to meet his burden of proof. As there is no enforceable settlement agreement, the prevailing party contractual provision is not in effect and attorney fees are not warranted.

California Code of Civil Procedure Section 128.5 states in pertinent part:

Sanctions ordered pursuant to this section shall be ordered pursuant to the following conditions and procedures:

. . . the court may, subject to the conditions stated below, impose an appropriate sanction upon the party, the party's attorneys, or both, for an action or tactic described in subdivision (a). In determining what sanctions, if any, should be ordered, the court shall consider whether a party seeking sanctions has exercised due diligence.

A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific alleged action or tactic, made in bad faith, that is frivolous or solely intended to cause unnecessary delay.

(CCP §128.5(f)(1)(A))

First, Plaintiff failed to file a separate motion for CCP 128.5 sanctions. Secondly, even though counsel reach a tentative settlement agreement, their clients are ultimately the only ones who can provide final approval of the terms discussed by the attorneys. There is no legal or factual basis for the requested sanctions.

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RULING

1. Motion to enforce agreement is DENIED.
2. Plaintiff's request for sanctions is DENIED.
3. Movant to give Notice.